

Great Ideas Creative Group

Date: April 14, 2025
From: [REDACTED]
Attn: [REDACTED]
RE: ORCHESTRA PRESENTATION OF Disney in Concert: ADIAW (bespoke)
FMP: 20357

~CONFIDENTIAL~

MATERIAL TERMS SUMMARY ("MTS")

Great Ideas Creative Group ("GICG") hereby confirms the engagement of "**Disney in Concert A Dream is a Wish**" (the "Program") on the material terms outlined below. This document when signed by all the parties shall govern the parties' relationship until such time as long form rental contracts ("Long Form Agreements") are executed by Presenter and GICG, and acknowledged by Disney Concerts.

Presenter: Conroe Symphony Orchestra

Presenter Address: [REDACTED]

Performance Dates and
Schedule:

Saturday, May 2, 2026
Cast travel dates are May 1, 2026 and May 3, 2026

Confirmed Performances: One (1)

Optional Performance(s): None

Subject to Presenter not being in uncured material breach of any agreement between Owner and/or GICG and Presenter, Presenter shall have the option to increase the number of Performances taking place on the Dates at the Venue as set forth immediately above by giving Owner written notice for the optional performances as set out above. Such notice is to be received by Owner no later than fifteen (15) days prior to the first ticket on-sale date (or pre-sale date, if earlier) for such optional Performance; provided that Presenter's exercise of any such option shall be subject to and conditioned upon Owner's timely receipt of all amounts (including, without limitation, the Guaranteed Fee and all applicable Option Guaranteed Fee) in respect of all Performances under this MTS.

Rehearsal Dates: Saturday, May 2, 2026 (2.5 hours to 3 hours at client's discretion)

Conductor: Provided by Presenter

Venue Name and Address: Willis High School Performing Arts Center, 10101 TX-75, Willis, TX 77378

Services/Talent to be
provided by GICG:

One (1) on-site producer + four (4) featured vocalists for the May 2, 2026 Rehearsal and Performance

Materials to be
Supplied by Disney Concerts
via GICG:

Orchestral score rental materials, visual film clips and related intellectual property as may be approved by Disney Concerts in each instance (e.g., Program-related logos, marketing/advertising materials, etc.). The materials licensed hereunder do **not** include the use of any music in marketing, advertising or promotional materials (e.g., television, radio, etc.).

Marketing/Promotional	Presenter acknowledges and agrees that the Disney Concerts shall have prior approval over all material creative elements of the Program (including without limitation the selection of vocal soloists, the marketing, advertising and promotional material used in and/or in connection with the Program. Please allow for a minimum of 1-2 weeks after submission for a response from Disney Concerts regarding approval of same.
Sponsorship/Merchandise:	All sponsorship and/or merchandise must be pre-approved by Disney Concerts in writing prior to the solicitation or creation of same, and may result in additional fees or payment of revenues. Any merchandise deal to be by separate agreement and subject to Disney Concert's approval.
Co-Promoters / Local Promoters:	Presenter shall not enter into any local or co-promotion agreement with a third party without the prior written consent of Disney Concerts. Presenter agrees it shall meaningfully and timely consult with Disney Concerts regarding, and provide to Disney Concerts copies of, all agreements entered into between it and any local promoters promptly following discussion and/or execution thereof. If any such agreement is not fully executed by the time that the accounting for the Performances is required to be rendered, then no later than with the rendering of the accounting for the Performances, Presenter shall provide Disney Concerts the most up-to-date draft of the unexecuted agreement that was implemented by Presenter and the promoter/party in question.
Affiliate Transactions:	Presenter acknowledges and agrees that Presenter has not and will not enter into any Affiliate Transaction (as defined herein) relating to the Performances or otherwise affecting the calculation of amounts payable to Disney Concerts hereunder (including, without limitation, any backend), without the prior written approval of Disney Concerts. • An "Affiliate Transaction" is a transfer of resources, services, or obligations between Presenter and an Affiliate of Presenter, regardless of whether a price is charged. • An "Affiliate" of Presenter is any legal entity, natural person, or other organized group of persons or entities controlled by or under common control with Presenter, either directly or indirectly via one or more intermediates.
Fee:	Twenty-three Thousand US Dollars (\$23,000 USD) net of local tax, guaranteed total for the Performance ("Guaranteed Fee"), plus standard economy airfare (not "basic" or other low budget fare) for five (5) passengers, five (5) standard single hotel rooms for two (2) nights including early check-in and late check-out, if necessary (Hotel to be approved by GICG), and local ground transportation for duration of stay.
Payment Schedule:	One-half (1/2) of the Guaranteed Fee (the "Initial Payment") shall be payable to GICG immediately upon full execution and return of this MTS. Balance of the Guaranteed Fee (i.e., one-half [1/2]) shall be payable immediately upon full execution of the Long Form Agreement which shall be in any case no later than March 2, 2026. For avoidance of doubt: (i) all show deliverables and rental materials are not provided until full execution of the Long Form Agreement and GICG's receipt (in fully-cleared funds) of the full balance of the Guaranteed Fee. Tickets may not go on sale to the public until receipt in full of the Initial Payment and full execution of this MTS.
Performing Rights:	Presenter agrees to file or cause to be filed with ASCAP and BMI, or the music performance society in its territory, a report of the compositions performed in each Performance and to secure any and all applicable public performance licenses

(whether on a per-program or blanket license basis) for the right to publicly perform the compositions. Presenter shall pay any and all public performance fees ("PPF") due in connection with the Performance(s), directly to any and all applicable PPF collection bodies, in the timeframe required by the applicable PPF collection body, but in no event more than thirty (30) days within the Date(s) of the Performance(s), and simultaneously submit a written confirmation to Disney Concerts that Presenter has done so. For the avoidance of doubt, PPFs are payable by Presenter in addition to any Fee and/or Bonus to GICG (if any).

Time is Of The Essence: Presenter acknowledges and agrees that time is of the essence with respect to all payment obligations hereunder and Presenter's failure to pay in the time frame set forth herein shall be deemed a material breach (upon which GICG shall be able to terminate this material terms summary and exercise and rights or seek any remedy available to GICG or Disney Concerts in law, equity or otherwise).

Wire Confirmations: Presenter shall provide to GICG a wire confirmation PDF confirming payment of each portion of the Fee hereunder. Such wire confirmation(s) shall be sent within one (1) business day from the date that such wire is made to ensure that announcement of ticket sales and delivery of rental materials can occur on a timely basis.

All wire confirmations shall be sent to the attention of: Ted Ricketts, President, Great Ideas Creative Group (ted@symphonypopsmusic.com).

Ticket Scale
Per performance (USD):

Category	Price \$	Sellable Seats	Top Potential Gross Before Discounts \$	
A	25	1060	26,500	
Total		1060	\$26,500	Gross Potential (USD)

The Presenter reserves the right to participate in dynamic pricing. Any change to the individual ticket prices in the foregoing ticket scale within a 10% range shall not be subject to Disney Concerts' prior written consent. Any changes to ticket prices outside of a 10% range, are subject to Disney Concerts' prior written consent. In the event ticket scale and/or pricing changes (whether or not Disney Concerts has approved the same) Disney Concerts shall be paid the Guaranteed Fee uplifted by the same percentage that actual total ticket revenue exceeds the total as shown on the Ticket Scale table. Such Guaranteed Fee adjustment (if any) shall be paid to Disney Concerts within 30 days of the last Performance. **Presenter acknowledges and agrees that any changes to the Ticket Scale set forth above shall require the prior written consent of Disney Concerts and may result in an increase to the Fee, and/or the Bonus.**

(next page)

PRESENTER MAY NOT MAKE TICKETS AVAILABLE FOR SALE OR DISTRIBUTION UNTIL THIS MATERIAL TERMS SUMMARY IS FULLY EXECUTED AND RETURNED AND 1/2 OF THE GUARANTEED FEE IS RECEIVED IN FULL BY GICG. A technical rider for this engagement has been issued to Presenter and is incorporated into this MTS by reference.

Conroe Symphony Orchestra

"GICG" (as defined herein)

[REDACTED]

President, Board of Directors

[REDACTED]

Owner and Authorized Signatory

Read, approved and acknowledged:

Disney Concerts

[REDACTED]



Agreement between the **Conroe Symphony Orchestra**, [REDACTED] (hereinafter referred to as "CLIENT") and [REDACTED] (Symphony Pops Music), [REDACTED] (hereinafter referred to as "SPM") as of **April 14, 2025** ("Effective Date"). The term ("Term") of this Agreement shall commence on the Effective Date and terminate at midnight on the Date of the final Performance hereunder. This Agreement is comprised of the terms below ("Terms"), and the Standard Terms and Conditions attached hereto and incorporated herein by reference ("Schedule A"), the technical rider attached hereto and incorporated herein by reference ("Schedule B"), and the credit list attached hereto and incorporated herein by reference ("Schedule C"). In the event of a conflict between the Terms and Schedule A, Schedule B, and/or Schedule C, the Terms shall govern over the terms of Schedule A, B, and/or C.

SPM hereby agrees to provide CLIENT all music required for a (2) two act, full length concert featuring the music of Walt Disney entitled *DISNEY IN CONCERT A Dream is a Wish* (the "Program"), show visuals authorized by the Walt Disney Company ("DISNEY" or "Owner"), the services of four Broadway caliber vocalists (hereinafter referred to as "PERFORMERS"), and promotional artwork for **one (1)** performance ("Performance(s)") to be held in **Willis, TX on May 2, 2026** ("Date(s)") at **Willis High School Performing Arts Center**, [REDACTED] with one rehearsal with the Performers to be scheduled **May 2, 2026**. The rehearsal duration shall be 2.5 to 3 hours at the discretion of the Client.

CLIENT hereby agrees to provide domestic standard economy class (not "basic", or other low budget priced economy), round trip air transportation for all four (4) PERFORMERS and one (1) SPM producer ("Producer") to and from the Performance(s). CLIENT will provide all ground transportation between airport, hotel, and Venue during the Performance(s), and five (5) single-occupant, first class hotel rooms checking in **May 1, 2026** and checking out **May 3, 2026** (with early check-in or late check-out as necessary) for the PERFORMERS and Producer at a hotel to be pre-approved in writing by SPM. CLIENT shall provide the name, address, and website link of the proposed hotel to SPM at least six (6) weeks prior to the first Performance hereunder. CLIENT will provide secure and safe staging to accommodate the PERFORMERS at all times, catering as specified in Schedule B during rehearsals and at the Performance(s), and a secure storage area for personal items at the Performance site. CLIENT will provide a minimum of two (2) private dressing rooms at the Venue for the exclusive use of the PERFORMERS. The dressing rooms shall contain mirrors, make-up tables, electrical outlets close to the mirrors, chairs, humidifiers, and adequate lighting.

Compensation. In consideration of the services to be performed by SPM and PERFORMERS, compensation in the following amount shall be paid to SPM as follows: **Twenty-three Thousand US Dollars (\$23,000.00 USD)** guaranteed total for the Performance(s) ("Guaranteed Fee"), freight/shipping for musical scores and parts, and all other local costs.

CLIENT agrees to pay the Guaranteed Fee together with the Participation (if any) in US\$. For the avoidance of doubt, the Guaranteed Fee shall not be recoupable against the Participation.

Payment Schedule. One-half (1/2) of the Guaranteed Fee (the "Initial Payment") shall be due and paid to Great Ideas Creative Group in fully-cleared funds immediately upon full execution of that certain material terms summary between SPM and CLIENT. The balance of the Guaranteed Fee shall be due and paid in fully-cleared funds upon the full execution of this Agreement which shall be in any case no later than **March 2, 2026** and must be received prior to shipping of the show deliverables. The show deliverables, including the music set, will not be shipped until the balance is received in fully-cleared funds. Promotional material will be provided to CLIENT within three (3) business days of confirmed receipt of the Initial Payment. *DISNEY IN CONCERT A Dream is a Wish* may not be announced or advertised until the Initial Payment has been received (in fully-cleared funds) and the promotional material has been provided to CLIENT by SPM. For the avoidance of doubt: (i) show deliverables and rental materials shall not be provided to CLIENT until full execution of this Agreement and SPM's receipt (in fully-cleared funds) of full balance of the Guaranteed Fee. The Bonus, if any, shall be due and paid to Great Ideas Creative Group in fully-cleared funds within ten (10) business days of the final Performance.

Ticket Revenue Report. CLIENT shall provide an Accounting Settlement (as hereinafter defined) to SPM no later than five (5) business days following the last Performance. "Accounting Settlement" means a written report providing a detailed nightly Performance accounting statement including ticket sales detailing prices of all ticket tiers, VIP packages and similar, Net Sponsorship Revenue (as defined in Schedule A attached hereto, including information as to the calculation of the same), Brochure Fees (as defined in Schedule A attached hereto) and Merchandise Revenue received by or credited to CLIENT in connection with the Performance(s) as well as any Performance-related show settlements possessed by CLIENT. If the terms of this Agreement contain a marketing commitment, then the Accounting Settlement shall also contain a report on marketing, advertising and promotion expenditures in accordance with the marketing commitment and shall be accompanied by copies of invoices evidencing the same.

Taxes. If there is any assessment of tax by a local taxing authority in connection with the Performance(s), this tax is to be paid by CLIENT. It is fully agreed and understood that no deductions whatsoever are to be taken from the Guaranteed Fee or from any Participation hereunder.

Independent Contractors. It is understood and agreed that, in the performance of this Agreement, SPM and CLIENT are acting as independent contractors, and shall not be, act or represent themselves as employees, agents or representatives of the other party to this Agreement, and shall not have the right, power or authority to bind the other party to this Agreement, or make any contract or other agreement, or assume or create any obligation or liability, expressed or implied, on behalf of the other party to this Agreement. Neither the making of this Agreement nor the performance of any of the provisions hereof shall be construed to constitute either party the agent or legal representative of the other party for any purpose, nor shall this Agreement be deemed to establish a joint venture or partnership between the parties hereto.

Insurance. CLIENT agrees to acquire the following insurance coverage all of which shall name and protect SPM and DISNEY and the companies comprising their parent, and any subsidiaries, related and affiliated companies of each, and the officers, directors, shareholders, employees, agents and assigns of each as additional insured (the “Additional Insured”): comprehensive general liability and event insurance insuring for claims against death and personal injury, for property damage caused by or resulting from arising out of or occurring in connection with the Show(s) and any incidental damages relating thereto. Such policy shall provide for a waiver of subrogation as against the Additional Insured. Such policy shall be in an amount of US \$1,000,000 combined single limit. The policy shall contain provisions to the effect (1) that the insolvency or bankruptcy of the insured (or its estate) shall not release the insurer from its obligations to satisfy claims otherwise within the policy coverage, and (2) that the insurer will pay on behalf of the insured all sums which the insured, by reason of liability assumed under this Agreement, would (but for the intervening rights of creditors, if any) be legally obligated to pay. No later than ten (10) business days prior to the first Performance hereunder, CLIENT shall deliver to SPM a copy certificate of CLIENT’s insurance naming the Additional Insured and a copy policy that evidences the policies required under this Agreement. All certificates of insurance delivered under this paragraph shall be signed by an authorized agent or representative of the insurance carrier. The failure to request, review or object to the terms of such certificates shall not be deemed a waiver of a CLIENT’s obligations or the rights of the Additional Insured. Without limiting the generality of the foregoing, the aggregate liability to CLIENT arising with respect to this Agreement will not exceed the total Guaranteed Fee (net of withholding) actually received by Owner from CLIENT under this Agreement.

The additional insured shall be listed as:

“Great Ideas Creative Group and its officers, directors, shareholders, employees, agents, and assigns.”

AND

“Buena Vista Concerts, a division of ABC, Inc., Disney Concerts, a division of ABC, Inc., Walt Disney Music Company, Wonderland Music Company, Inc., and their respective parents, and any subsidiaries, related and affiliated companies of each, and their respective officers, directors, shareholders, employees, agents, and assigns.”

Force Majeure: If a party’s performance under this Agreement becomes impossible by reason of a force majeure event, including but not limited to, war, riot, labor dispute, earthquake, fire, flood, act of terrorism, public disaster, act of governmental entity, act of God, or epidemic (including, but not limited to the current outbreak of the Coronavirus), (“Force Majeure Event”), the party claiming the existence of a Force Majeure Event (“Affected Party”) must promptly provide written notice to the unaffected party of such Force Majeure Event providing information as to the circumstances of such Force Majeure Event and the resulting impact on the affected party. Subject to and upon the unaffected party’s receipt of such Force Majeure Event, the performance by the Affected Party of its obligations, solely with respect to the Performance(s) directly affected by the Force Majeure Event, shall be immediately suspended hereunder for the duration of such Force Majeure Event. The parties shall confer in good faith from time-to-time

through the duration of the suspension to review the ongoing facts and appropriate courses of action. In the event any Performance is required to be canceled on the scheduled date for such Performance as a direct result of such Force Majeure event, the parties will exercise good faith efforts to reschedule the canceled Performance to a mutually agreed upon future date.

CLIENT's Warranties. CLIENT represents, warrants and agrees that:

(a) CLIENT is now and will continue to be engaged through the Date of the final Performance hereunder in the presentation of first-class orchestral concert performances in **Willis, TX**; and

(b) CLIENT has the full right, power and authority to enter into and perform this Agreement;

(c) Statements (oral and written, if any) made in the negotiation of this Agreement with regards to ticket pricing and plans, number of seats, VIP packages and similar were and are true and correct and will remain so through the Date of the final Performance hereunder. CLIENT hereby acknowledges and agrees that failure to declare the same accurately or actual seat count, ticket pricing breakdowns, and any VIP packages (whether Program branded or not) or similar varying from what was declared are a material breach of this Agreement;

(d) CLIENT shall be responsible for all the costs and expenses of producing the Program and Performance(s) at the Venue and the marketing, advertising and promotion thereof;

(e) CLIENT agrees to file or cause to be filed with ASCAP and BMI or the music performance society in its territory a report of the compositions performed in each performance and secure any and all applicable public performance licenses (whether on a per-program or blanket license basis) for the right to publicly perform the compositions as authorized hereunder. CLIENT shall be required to secure any applicable public performance licenses and pay any and all fees due to any music performing societies in connection with the exploitation of the program and the performance, in the timeframe required by the applicable music performing societies, but in no event more than thirty (30) days within the Date(s), and simultaneously submit a written confirmation to SPM that CLIENT has done so; and

(f) CLIENT acknowledges and agrees that it shall comply with the DISNEY policies, terms and conditions set forth on Schedule A, and that CLIENT's inability to so comply shall be a material breach of this Agreement.

Indemnity. CLIENT agrees to defend, indemnify and hold SPM, its parent, affiliated and subsidiary companies, harmless from any and all damages, liabilities, costs, losses and expenses (including legal costs and attorneys' fees) arising out of or connected with any breach or alleged breach of this Agreement, any claim, demand or action by a third party which is inconsistent with any of the warranties, representations or agreements made by CLIENT in this Agreement, or which results from any use or exploitation of the Materials in any manner not authorized herein and from any material introduced into the Program or Performance(s) which is not licensed from SPM hereunder (whether or not such material has been approved by SPM for inclusion in the Program). CLIENT agrees to reimburse SPM on demand for any such damages, liabilities, costs, losses or expenses to which the foregoing indemnity applies. SPM shall notify CLIENT of any such claim, demand or action promptly after SPM has been formally advised thereof, and CLIENT shall not settle any such claim, demand or action without the prior written consent of SPM.

Default by CLIENT. SPM shall have the right, in addition and without prejudice, to any of its rights and remedies at law or otherwise, to terminate this Agreement by written notice to CLIENT upon the occurrence of any of the following events:

- (a) If CLIENT fails to perform any obligation required of it hereunder, and such failure has not been cured by CLIENT within fifteen (15) days after written notice from SPM; or
- (b) If CLIENT makes any assignment for the benefit of creditors, files a petition in bankruptcy, is adjudged bankrupt, becomes insolvent, or is placed in receivership, or if the equivalent of any such proceedings or acts occur.

Effect of Expiration or Termination. Upon the expiration or termination of this Agreement, all rights granted by SPM to CLIENT hereunder shall immediately terminate, CLIENT shall cease all use of the Materials and shall execute and deliver to SPM all such documents as SPM may deem necessary or expedient to effectuate such expiration or termination. Any termination shall be without prejudice to the parties' rights and remedies expressed to survive the termination or expiration of the Term, including without limitation SPM's rights to be accounted to, be paid and to audit.

Time is of the Essence. CLIENT acknowledges and agrees that time is of the essence with respect to all payment obligations hereunder and CLIENT's failure to pay in the time frame set forth herein shall be deemed a material breach of this Agreement, upon which SPM shall have the right to terminate this Agreement and exercise any right or seek any remedy available to SPM in law, equity or otherwise.

Complimentary Tickets. CLIENT shall provide a minimum of 10 complimentary tickets for each Performance in rows 10-15 near the center of the hall. SPM will provide names for distribution of comps at "will call" window.

Marketing and Promotional Materials. The title **DISNEY IN CONCERT *A Dream is a Wish*** may not be altered in any way. *All text, artwork, and television or radio spots created for use in marketing the Performance(s) must be approved in advance in writing by SPM.* CLIENT acknowledges and agrees that SPM shall have prior approval over all material creative elements of the Program (including without limitation the selection of vocal soloists, the marketing, advertising and promotional material used in and/or in connection with the Program). Please allow for a minimum of three (3) business days after submission for a response from SPM regarding approval of same.

Sponsorship/Merchandise. All sponsorship and/or merchandise must be pre-approved by DISNEY in writing prior to the solicitation or creation of same. Any merchandise deal to be by separate agreement and subject to DISNEY's approval.

Co-Promoters/Local Promoters. CLIENT shall not enter into any local or co-promotion agreement with a third party without the prior written consent of DISNEY. CLIENT agrees it shall meaningfully and timely consult with DISNEY regarding, and provide to DISNEY copies of all agreements entered into between it and any local promoters promptly following discussion and/or execution thereof. If any such agreement is not fully executed by the time that the

accounting for the Performance(s) is required to be rendered, then no later than with the rendering of the accounting for the Performance(s), CLIENT shall provide DISNEY the most up-to-date draft of the unexecuted agreement that was implemented by CLIENT and the promoter/party in question.

Affiliate Transactions. CLIENT acknowledges and agrees that CLIENT has not and will not enter into any Affiliate Transaction (as defined herein) relating to the Performance(s) or otherwise affecting the calculation of amounts payable to DISNEY or SPM hereunder (including, without limitation, any backend), without the prior written approval of Disney.

- An “Affiliate Transaction” is a transfer of resources, services, or obligations between CLIENT and an Affiliate of CLIENT, regardless of whether a price is charged.
- An “Affiliate” of CLIENT is any legal entity, natural person, or other organized group of persons or entities controlled by or under common control with CLIENT, either directly or indirectly via one or more intermediates.

Grant of Rights. Subject to the provisions of this Agreement, DISNEY has granted to SPM, during the term of this Agreement, the nonexclusive right to use and perform and to allow the CLIENT to use and perform the musical score and instrumental parts (the “Materials”) in the Program solely for one (1) Performance on **May 2, 2026** by CLIENT only in **Willis, TX** as expressly set forth herein.

Limitation on Rights. All rights not specifically granted to SPM and CLIENT in this agreement with respect to the Materials and the musical compositions embodied therein (the “Compositions”) are reserved by DISNEY. Without limiting the generality of the foregoing, SPM and CLIENT shall not do any of the following without DISNEY’s prior written approval:

- (a) Make any change in the titles or the lyrics, or alter the music of the Program;
- (b) Copy, reproduce, re-arrange, re-score, transcribe, choreograph, stage, distribute or sell the lyrics, music or the Materials;
- (c) Make or authorize the making of audio and/or visual reproducing devices of any kind embodying the Program in part or entirety;
- (d) Record, broadcast, telecast or transmit, or permit the recording, broadcast, telecast or transmission, of the Performance(s) by any method or medium now known or hereafter devised;
- (e) Use the plot, story or other dramatic content of the lyrics of the Composition as part of the Performance;
- (f) Utilize any character, copyright, trademark, trade name or other material owned or controlled by DISNEY (other than what is provided in the package) during or in connection with the Performance(s), the advertising or promotion thereof, or the programs related thereto; or
- (g) Advertise or promote the sale of discounted ticket prices or special VIP ticket packages for the Performance(s) without DISNEY's prior written approval.

Credit and Copyright Notice. CLIENT agrees that all programs for the EVENT shall contain the names of the composer and arranger of the Composition(s), copyright notices, and a

courtesy credit to DISNEY in such form, location and content as shall be provided by SPM (see Schedule B attached hereto). CLIENT shall submit proof prints of each such program to SPM for approval prior to the volume printing or distribution thereof. If programs are provided at the Performance(s), they shall be provided free-of-charge to audience members unless other arrangements are made with DISNEY.

Materials. SPM will make the Materials available for the Performance(s) at least seven weeks prior to Date of the first Performance hereunder. All Materials must be returned by **UPS** or **FedEx** trackable ground delivery service and shipped within four (4) days of the final Date. The return shipping costs shall be paid by CLIENT. If CLIENT fails to return all of the Materials in a timely manner, CLIENT shall pay to SPM the sum of Two Hundred Ten Dollars (\$210.00) per week (or any portion thereof) that CLIENT is late in returning the Materials. All of the Materials must be returned by CLIENT in good condition. If any Materials are lost, damaged or returned in a dirty or marked condition, CLIENT shall pay SPM the sum of Ten Dollars (\$10.00) per page for any lost, damaged or dirty part.

Agreed to as of the Effective Date:

Signature: _____



**President, Board of Directors
Conroe Symphony Orchestra**

Signature: _____



**President
Great Ideas Creative Group (Symphony Pops Music)**

SCHEDULE "A"

DISNEY'S POLICIES, TERMS AND CONDITIONS

1. Billing, Advertising, Promotion

1.1 The Program shall be billed in all marketing, promotion and advertising in accordance with the Billing and shall receive 100% sole headline billing with the orchestra in all advertising and publicity including but not limited to broadcast advertising, newspaper and trade ads, fliers, posters, billboards and marquees, websites, and all other forms of promotion, as the same may be approved by Owner hereunder.

1.2 No other person or persons, including but not limited to a master of ceremonies or other performers, may be presented alongside the Program without Owner's prior written approval.

1.3 CLIENT shall not make public use of any of the following materials prior to submission and written approval by Owner: all logos, artwork, advertising, marketing and promotional materials in any and all media and methods now known or hereafter devised (including, without limitation, print [e.g., ad copy], audio and audio-visual [e.g., radio and tv scripts, story boards and edited commercials], and use on web pages and other digital platforms]) and marketing, advertising and promotional plans. If Owner shall disapprove any of the foregoing, Owner shall promptly provide guidance to CLIENT in reasonably specific detail in order that the applicable materials may be revised by CLIENT so as to facilitate approval by Owner.

1.4 CLIENT shall, in all print and other visual advertising and promotion, use only photos, artwork and other visual materials supplied by, or otherwise expressly approved in writing in advance by, Owner, and all such uses shall be subject to Section 2 below.

1.5 Unless specifically approved by Owner otherwise, the right to use any character, image, artwork, copyright, trademark, tradename or any other intellectual property owned or controlled by Disney Enterprises, Inc. (the "**Disney IP**") shall be limited solely to the advertising of the Program and Performance(s) on the Dates and CLIENT shall not have the right to use any Disney IP in connection with any other performance or program, any so-called "series" or programs or any larger performance "season", or the advertising or promotion thereof.

1.6 All of CLIENT's promotional materials relating to the Program and the Performance shall include the following copyright notice:

"Presentation licensed by Disney Concerts © All rights reserved"

1.7 No business or individual sponsor names and/or logos (including presenting or title sponsors) in connection with the presentation of the Program and the Performance(s) are permitted and/or shall be included in any marketing, promotional, advertising or other materials pertaining to the Program and/or the Performance(s) (including, without limitation, any printed program relating to the Program or a Performance), without Owner's prior written approval.

1.8 At CLIENT's reasonable request, Owner shall use good faith efforts to provide program copy with respect to the Program and the Performance(s) for complimentary concert programs or brochures only. Concert programs and brochures embodying the same or any other Owner materials which are intended to be offered for sale to patrons shall require prior written approval and separate licensing by Owner.

1.9 Owner, and Owner affiliated intellectual property including without limitation, Disney IP, and the Disney name may not be used in connection with any merchandise, product or service, to promote the Venue, Company any so-called "season" or "series" in which the Program is included without the further written approval and license of Owner. Further license fees may be payable in connection with such uses. Please contact Owner with information as to desired uses so Owner may provide more information.

1.10 Use of music (master recordings and/or musical compositions) and audiovisual material controlled by Owner and its affiliated Disney companies in Program advertising in any media require additional licenses and additional

fees. Please contact Dominic Griffin at Disney Music Group dominic.griffin@disney.com (1) 818 560 1483 for more information, licensing and assets.

1.11 All promotional, graphic, audio, TV or internet advertising must be approved by Owner before first use. Please note that materials approved for one kind of use require additional approvals for different categories of uses. This copyright notice must appear on all materials: *Presentation licensed by Disney Concerts © All rights reserved*

2. Compensation

2.1 **Sponsorship**: Any and all Program or Performance sponsors and sponsorship agreements or other agreements relating to naming, affiliation or association rights must be pre-approved in writing by Owner and CLIENT, and shall be subject to Section 1.7 above. If both parties acquire sponsorships for the same category, both parties agree that the sponsorship with the higher cash value shall prevail, subject to final written approval of both parties. Owner and CLIENT shall share equally all Net Sponsorship Revenue. "**Net Sponsorship Revenue**" means Gross Sponsorship Revenue less out-of-pocket third-party deductions solely on account of actual third party agent or deal finder type commissions payable to a third party agency or entity engaged to secure the sponsorship and any out-of-pocket costs and expenses of activation to meet the requirements of the sponsorship agreement to the extent the same are included in the sponsorship fee). "**Gross Sponsorship Revenue**" means being gross amounts of sponsorship fee or other money received by or credited to the recipient in respect of the Program and/or Performance(s). Provided that there is not a third party receiving a deal finding type commission then the party (Owner or CLIENT) that secured the sponsorship agreement shall be entitled to retain for its sole account a fee of 15% of the Gross Sponsorship Revenue prior to the calculation of Net Sponsorship Revenue.

2.2 **Show Brochures/Programs**: The sale of brochures or programs related to the Performance, and all additional merchandising and ad sales arrangements are subject to Owner's prior written approval. With respect to the sale of brochures or programs by CLIENT, CLIENT shall pay Owner fifty percent (50%) of all merchandising revenues, if any, from the sale of such brochures ("**Brochure Fee**"). CLIENT shall have the right to deduct bona fide out-of-pocket third-party production costs incurred in the design, production and distribution of such brochures, and any third party out-of-pocket "hall" or venue participation fees which CLIENT must pay to the Venue for the right to sell the brochures. Any other Brochure Fee deductions are subject to Owner's prior written approval. CLIENT shall submit proof prints of each such program and/or brochure to Owner for prior written approval prior to the volume printing or distribution thereof in any media and provide Owner, when returning the Materials, two (2) copies of the final distributed programs or brochures for each Performance promptly following the conclusion thereof.

2.3 **Merchandise**: All merchandise and ad sales associated with the Program by or on behalf of CLIENT must be approved by Owner in writing. With respect to the sale of any and all merchandise items (including any ad sales revenues relating thereto) made at the Venue (including on-line and in any Venue branded retail establishments wherever located) during Performances and/or in association with the Performances, which have been pre-approved by Owner, other than the brochure sales revenue referred to in Section 3.5, CLIENT shall pay Owner the greater of (i) fifty percent (50%) of all such merchandising and ad sales revenues or (ii) eighty (80%) percent of the net profit derived from such merchandising and ad sales revenues (net profit being the revenue received by or credited to CLIENT in respect of the merchandise and ad sales revenue less the out-of-pocket third party costs and expenses incurred in the creation, distribution, marketing and sale of the merchandise ("**Merchandise Revenue**"). Absent Owner's written agreement to the contrary, VIP packages sold at Venue redeemed on the Dates in conjunction with the Program (whether Program branded or not) shall be treated as an item of merchandise sold in conjunction with the Program and the income derived therefrom shall be Merchandise Revenue all subject to the terms of this Agreement.

2.4 **Right of Audit**: An attorney or certified public accountant or other suitably qualified person on Owner's behalf may, upon no less than ninety (90) days' written notice to CLIENT, examine and copy those portions of CLIENT's books and records (in any format) in connection with the subject matter hereof (including without limitation the Accounting Settlement, Sponsorship Revenue (both Gross and Net), Brochure Fees, and Merchandise Revenue for the purpose of verifying the accuracy of statements rendered to Owner by CLIENT. CLIENT's books and records relating to any particular statement may be examined and copied as aforesaid: (i)

at the location where such books and records are usually maintained; (ii) during CLIENT's normal business hours; and (iii) within thirty-six (36) months after the date such statement is rendered to Owner hereunder.

2.5. **Cancellation:** In the event CLIENT cancels one or more Performances hereunder but the Company performs at least one Performance then the full Guaranteed Fee shall be payable. In the event that CLIENT cancels all Performances hereunder prior to the first Performance then Owner shall be entitled to retain the first installment of the Guaranteed Fee as liquidated damages being reasonable compensation for Owner's costs and expenses associated with negotiating and entering into this Agreement and having held the Dates for CLIENT.

3. **Marketing and Public Relations**

3.1 CLIENT will engage in comprehensive marketing, advertising and promotion activities for each Performance by booking prominent advertisements and billboards. On a weekly basis, CLIENT shall inform Owner of advance ticket sales and information regarding any and all booked marketing campaigns (which campaigns are subject to Owner's prior written approval as set forth in Section 1.3 above).

3.2 CLIENT hereby grants Owner the non-exclusive right to use, in any manner now or hereafter known, recordings of any type derived from the Performances (including advertising marketing and promotional material in any media relating to the Program licensed hereunder), for the following purposes: (a) historical records of the activities of Owner and the Exploitations of the Program; (b) for the solicitation of future business and use in connection with such future business; (c) for use on the websites of Owner and those websites of persons obtaining rights through Owner; (d) for marketing, advertising and promotion of future events by Owner and for third parties obtaining rights through Owner; and (f) for the creation of YouTube style short web and other promo videos relating to Owner's business and the Program. All such uses by Owner and persons deriving rights through Owner shall be without payment to CLIENT and Owner shall be free to exploit the same in any manner in perpetuity in any and all media whether now or hereafter known. No agreement with any third party shall restrict the rights herein granted to Owner. Notwithstanding the foregoing, with respect to Owner's uses of the recordings, Owner shall be responsible for securing and paying for any licenses from the owners of rights in the musical compositions embodied in the recordings.

3.3 Without prejudice to the restrictions contained elsewhere in this Agreement, promptly following the last Performance, CLIENT shall provide Owner with copies of any audio, still and/or audiovisual images ("**CLIENT Media**") shot by or on behalf of CLIENT of the Performances for use by Owner and those deriving rights under Owner in accordance with this Agreement. CLIENT hereby warrants that CLIENT has obtained the necessary clearances from the persons appearing in the CLIENT Media and of sponsors and other whose intellectual property (including without limitation trademarks and copyrights) may be visible in the recordings, to permit Owner to exercise the rights herein granted to Owner in respect of CLIENT Media. As between Owner and CLIENT, Owner shall be responsible for obtaining and paying for any clearances and licenses from the owners or controllers of rights in musical compositions embodied in CLIENT Media in respect of any uses thereof by Owner and those obtaining rights under Owner.

4. **Ownership**

All rights in and to the Materials, and all elements and derivations thereof, shall remain the sole and exclusive property of Owner, subject only to the rights granted to CLIENT in this Agreement. Any derivative rights in the Materials created by the operation of this Agreement, including goodwill related thereto, are hereby assigned to Owner. CLIENT agrees to execute and deliver, or cause to be executed and delivered to Owner, any and all documents and instruments as Owner may from time to time require, and to take such action as is from time to time requested by Owner, for the purpose of confirming or assuring Owner's ownership of the Materials. If CLIENT fails to do any of the foregoing, CLIENT hereby irrevocably constitutes, authorizes, empowers and appoints Owner, or any of its officers, CLIENT's true and lawful attorney-in-fact, coupled with an interest, for the limited purposes hereof, in CLIENT's name, place and stead, to take such action, and make, execute, acknowledge and deliver any and all such documents and instruments.

5. **Notices**

Any notice required, permitted or desired to be given pursuant to any of the provisions of this Agreement shall be deemed to have been sufficiently given or served for all purposes if delivered in person or sent by certified

mail, return receipt requested, postage and fees prepaid, or by national overnight delivery prepaid service to the parties at their addresses set forth above. Either of the parties hereto may at any time and from time to time hereafter change the address to which notice shall be sent hereunder by notice to the other party given under this subparagraph. The date of the giving of any notice sent by mail shall be the date of the posting of the mail, except that notice of an address change shall be deemed given when received.

6. Confidentiality

This Agreement shall be deemed confidential and CLIENT agrees not to publicize or circulate information regarding the terms and conditions of this Agreement to any third parties, without limitation, with the exception of attorneys, accountants, or other professional representatives of CLIENT, and for the purposes of the reporting of income, taxes and otherwise as may be required to comply with the applicable laws, regulations and the lawful order of a court or other body of competent jurisdiction.

7. Limitation of Liability

Under no circumstances will any of the Additional Insured be liable to CLIENT or any other producer of the Performances, any sponsor or media partner and any of their employees, agents or customers for any indirect, incidental, consequential, special or exemplary damages arising out of or in connection with this Agreement, whether or not any of the Additional Insured have been advised of the possibility of such damages. Without limiting the generality of the foregoing, the aggregate liability to CLIENT arising with respect to this Agreement will not exceed the total Guaranteed Fee (net of withholding) actually received by Owner from CLIENT under this Agreement.

8. Miscellaneous

8.1 This Agreement contains the entire understanding of the parties hereto with respect to the subject matter hereof. No modification, amendment or waiver of this Agreement or any provision hereof shall be binding unless confirmed by a written instrument signed by both parties hereto. The validity, interpretation and legal effect of this Agreement shall be governed by the laws of the State of California, applicable to contracts entered into and performed entirely in such State. Each party hereto agrees to submit itself to the jurisdiction of the federal or state courts located in Los Angeles County in any action which may arise out of this Agreement and such courts shall have exclusive jurisdiction over all disputes between Owner and CLIENT pertaining to this Agreement and all matters related thereto.

8.2 Section headings used herein are for convenience only, and shall not be used in construing this Agreement. Titles or captions contained in this Agreement are inserted for convenience of reference only and shall not be considered in the interpretation of this Agreement. No provision of this Agreement is to be interpreted for or against any party because that party or its attorney drafted the provision. References to Sections are references to sections in this Agreement.

8.3 All capitalized terms used but not defined in this Schedule A shall have the meaning set forth in underlying agreement to which this Schedule is attached.

8.4 This Agreement is personal to CLIENT and may not be assigned or sublicensed by CLIENT.

8.5 The rights granted to CLIENT herein, are of a special, unique, extraordinary and intellectual character which gives them peculiar value, the loss of which cannot be reasonably or adequately compensated in damages in an action at law, and a breach of this Agreement may cause Owner irreparable injury. Owner will be entitled seek injunctive and other equitable relief to prevent a material breach of this Agreement, which relief shall be in addition to any other rights or remedies which Owner may have, whether for damages or otherwise.

8.6 This Agreement may be executed in counterparts, each of which will be deemed an original and all of which together will constitute one and the same. A facsimile signature by either party hereto shall constitute due execution of this Agreement by such party.

8.7 CLIENT hereby agrees that it shall not in any event have the right to seek to enjoin Owner with regard to the subject matter of this Agreement or the exploitation of the Owner or those deriving rights from Owner with respect to the Program.

SCHEDULE “B”



SYMPHONY POPS MUSIC

Technical Rider

March 6, 2023

1.0 SET / SOUND / LIGHTING / VIDEO REQUIREMENTS

CLIENT agrees to provide and pay for high quality systems for use in presenting the Program at CLIENT's sole expense, as well as set-up and operating personnel for said systems. Systems shall be set-up and operational at least two (2) hours prior to rehearsal and performance.

1.1 Minimum requirements are as follows:

Set / Orchestra Setup

While it isn't required, we do recommend the rhythm section (electric bass, trap set, synthesizer and keyboard) be set-up adjacent to each other and near the center, front of the orchestra.

A minimum of 6' downstage of the **entire front edge** of the orchestra (**including the conductor's podium**) is required for staging.

Access for SL and SR entrances downstage of the **entire front edge** of the orchestra is required.

Music stands with lights for orchestra.

Podium for conductor and large conductor music stand w/lights.

1.2 Sound System:

As necessary, CLIENT agrees to provide sufficient microphones to provide reinforcement for the entire orchestra. Because there are some critical solo moments in the Program for the guitar (both acoustic and electric) and the acoustic piano, we ask that you please amplify those instruments through the house amplification system.

Please provide four handheld wireless microphones for the singers, one handheld wireless microphone for the conductor, and one off-stage microphone SL (switch-able on/off used for announcements and background vocals).

The PERFORMERS prefer in ear monitors, however, if you choose to provide in ear monitors you must provide a dedicated monitor mix technician. Four floor monitors will also be needed across the front of the stage spaced according to the singers' preference (generally 10' separation between the monitors spaced evenly across the center line). Generally speaking, only one vocals-only mix is needed for the four monitors, however, depending on the ability of the singers to hear the ambient sound of the guitar and piano you may need to place those instruments on occasion into the monitors.

The conductor will need a vocal monitor.

Sufficient audio monitoring for all musicians as needed.

Sufficient speakers for the venue, we require a state-of-the-art sound system. System shall be stereo and capable of evenly covering the entire listening area, able to achieve high sound levels with no audible distortion.

CLIENT shall provide Clearcom headsets beginning with the first rehearsal (show caller/videotape operator/sound engineer/lighting operator/backstage stage manager/spare).

If video calling position is in booth, provide audio reference monitors as needed.

Sound mixing console and operator for live music and singers. CLIENT to use reasonable efforts to provide a suitable area for audio mix position in the rear center of the house; preferably not in a booth or under an overhang. 3 rows of seats to a width of 8-16' is typical; seats to be removed and area made level.

1.3 Lighting:

CLIENT agrees to provide and pay for fully qualified lighting technician/s to install and operate a fully professional system, including programming.

CLIENT agrees to provide four (4) follow-spots (four (4)). The lighting director shall call the follow-spot cues.

1.4 VIDEO REQUIREMENTS

CLIENT agrees to provide and pay for high quality systems for use by *A Dream is a Wish* at the CLIENT 's sole expense, as well as set-up and operating personnel for said systems. Systems shall be set-up and operational at least two (2) hours prior to rehearsal and performance.

SPM will provide two MacBook Pros for playback of the video material via Playback Pro Plus (one main playback machine and a backup machine). Video line out is via direct HDMI ports. CLIENT shall provide all other necessary cables and gear. The CLIENT agrees to provide a knowledgeable AV technician to operate the equipment (including the SPM computers), and all other video equipment necessary to allow the highest quality

resolution possible for the visuals (including a high-resolution switcher), minimum 9' x 16', 16:9 aspect ratio screen(s), and minimum 30K projector(s)). Video aspect ratio is 16:9. If at all possible, please hang the screen center stage 8 - 10' upstage of the conductor (or centered at the back of the stage). No audio from the video is needed for the performance. A single video track is fed to the screen and the conductor monitor.

Direct line-of-sight is required between the show caller/video operator and the conductor with the preferred video location being FOH. Please provide a comfortable chair for the Producer, and a level table large enough to hold two computers and a show production book.

The conductor will need a video monitor.

2.0 ORCHESTRA

This concert package requires the services of a professional symphonic pops orchestra.

CLIENT will provide and pay for an orchestra and conductor to rehearse and perform the Program according to the instrumentation breakdown below.

3 Flutes (1-2 double alto flute, 3 doubles picc.)
2 Oboes (2nd doubles E.H.)
2 Clarinets
2 Bassoons (2nd doubles contra)
4 Horns
3 Trumpets (1st doubles Piccolo Trumpet)
3 Trombones
1 Tuba
Drum Set
Timpani
3 Percussionists
1 Keyboard 1 (piano, celeste, and **synthesizer**)
1 Keyboard 2 (synthesizer)
Harp
1 Guitar (electric and acoustic)
Electric Bass
Strings (Minimum numbers are 10 violin 1, 8 violin 2, 8 viola, 6 celli, and 4 arco basses).

A minimum of one 2.5 hour rehearsal with the singers is required.

3.0 CATERING

Snacks to be provided backstage for all singers during Rehearsal and Event

The following is a list of basic suggestions:

Bottled Water, both flat and sparkling
Hot water, assorted tea bags, honey
Soda and/or other beverages

Fresh fruit and veggies
Pretzels or other salty snacks
Granola bars
A gluten-free snack
Sandwich Platter

A hot meal with at least one vegetarian option shall be provided for the PERFORMERS and Producer between the dress rehearsal and/or performances if there is less than 2.5 hours between the end of the rehearsal and the beginning of the performance.

Please contact [REDACTED] if you have any questions.

SCHEDULE "C"
Credit List

DISNEY IN CONCERT *A Dream is a Wish* is produced by
Symphony Pops Music



██████████ licensed by Disney Concerts © All rights reserved

Songs from Disney's *The Little Mermaid*

Music by Alan Menken
Lyrics by Howard Ashman
Arranged by A. Menken, R. Merkin
T. Pasatieri and T. Ricketts
© 1990 Wonderland Music Co., Inc.

- | | |
|------------------------------------|---------------------------|
| 1. <i>"Part of Your World"</i> | 2. <i>"Under the Sea"</i> |
| 3. <i>"Poor Unfortunate Souls"</i> | 4. <i>"Kiss the Girl"</i> |

Selections from Disney's *Tangled*

Music by Alan Menken
Lyrics by Glenn Slater
© 2014 Walt Disney Music Company,
and Wonderland Music Company, Inc.

1. *"When Will My Life Begin?"*

Disney's *Aladdin* Orchestral Suite

Music by Alan Menken
Lyrics by Howard Ashman and Tim Rice
Arranged by Danny Troob and Bruce Healey
© 1992 Wonderland Music Co., Inc.
& Walt Disney Music Company

- | | |
|-------------------------------|----------------------------|
| 1. <i>"Arabian Nights"</i> | 2. <i>"Friend Like Me"</i> |
| 3. <i>"A Whole New World"</i> | |

Pirates of the Caribbean Suite

Music by Klaus Badelt
Arranged by Ted Ricketts
© 2003 Walt Disney Music Company (ASCAP)

Disney's The Lion King Orchestral Song Suite

Music by Elton John

Lyrics by Tim Rice and Lebo M.

Score by Hans Zimmer

Arranged by Brad Kelley and Ted Ricketts

© 1994 Wonderland Music Co., Inc. (BMI)

1. *"Nants Ingonyama"*
3. *"I Just Can't Wait to Be King"*

2. *"Circle of Life"*
4. *"Can You Feel the Love Tonight"*

INTERMISSION

Disney's Beauty and the Beast Orchestral Suite

Music by Alan Menken

Lyrics by Howard Ashman

Arranged by Danny Troob and

Franck van der Heijden

Edited by Ted Ricketts

© 1992 Wonderland Music Co., Inc. (BMI)

& Walt Disney Music Company (ASCAP)

1. *"Belle"*
3. *"Beauty and the Beast"*

2. *"Be Our Guest"*

A Dream is a Wish Medley (songs from Disney's Cinderella)

Music and Lyrics by Mack David, Al Hoffman, and Jerry Livingston

Arranged by Joe Dubin, Sid Fine, and Ted Ricketts

© 1948 Walt Disney Music Company (ASCAP)

1. *"Cinderella"*
3. *"Bibbidi-Bobbidi-Boo (The Magic Song)"*

2. *"A Dream is a Wish Your Heart Makes"*
4. *"So This is Love (The Cinderella Waltz)"*

"Go the Distance"

Music by Alan Menken

Lyrics by David Zippel

Arranged by Brad Kelley

© 1997 Wonderland Music Co., Inc. (BMI)

& Walt Disney Music Company (ASCAP)

"We Don't Talk About Bruno"

Words and Music by Lin-Manuel Miranda

© 2021 Walt Disney Music Company

Frozen Medley

Words and Music by Kristen Anderson-Lopez and Robert Lopez

Underscore composed by Christopher Best

Orchestrations by Dave Metzger

Adapted by Ted Ricketts
© 2013 Wonderland Music Company, Inc.

- | | |
|-------------------------------------|------------------------------------|
| 1. "The Great Thaw" | 2. "Elsa and Anna" |
| 3. "Do You Want to Build a Snowman" | 4. "For the First Time in Forever" |
| 5. "In Summer" | 6. "Let it Go" |

[Encore-please do not list this in the program]

"Into the Unknown"

Words and Music by Kristen Anderson-Lopez and Robert Lopez
Orchestrations by Dave Metzger
© 2019 Wonderland Music Company, Inc.

[Program is subject to change.]

[Please note: The individual songs within the medleys don't need to be numbered. They are numbered here so that there is no doubt about the order.]